

Present
Mr. Justice Sheikh Abdul Awal
Criminal Revision No. 1549 of 2019

Rezwan Dai @ Razzak

.....Convict-petitioner.

-Versus-

The State

.....Opposite party.

No one appears

.....For the convict-petitioner.

Ms. Shahida Khatoon, D.A.G with
Ms. Sabina Perven, A.A.G with
Ms. Kohenoor Akter, A.A.G.

.....For the State opposite party

Judgment on 29.01.2024.

Sheikh Abdul Awal, J:

This Rule was issued calling upon the opposite party to show cause as to why the impugned judgment and order dated 05.09.2018 passed by the learned Additional Sessions Judge, 2nd Court, Bagerhat in Criminal Appeal No. 148 of 2015 affirming the judgment and order of conviction and sentence dated 22.09.2015 passed by the learned Judicial Magistrate, Court No. 1, Bagerhat, in G.R. No. 62 of 2011 (Kochua) corresponding to Kochua Police Station case No. 13 dated 30.09.2011 convicting the accused petitioner under table 7(ka) of Section 19(1) of the Narcotics Control Act,

1990 and Section 19(4) of the Penal Code and sentencing him thereunder to suffer rigorous imprisonment for a period of 01(one) year and to pay fine of Tk. 1,000/- (one thousand) in default to suffer simple imprisonment for 30 (thirty) days more should not be set-aside and/or such other or further order or orders passed as to this Court may seem fit and proper.

No one found present to press the Rule on repeated calls despite of fact that this criminal Revision has been appearing in the list for hearing with the name of the learned Advocate for the appellant for a number of days.

In view of the fact that this petty old criminal Revision arising out of 01(one) year sentence has been dragging before this Court for more than 4 years, I am inclined to dispose of the same.

At the time of pronouncement of judgment, it appears from the record that this Court on 23.06.2019 at the time of issuance of the Rule granted bail to the accused petitioner for a period of 06(six) months and thereafter, no one took any steps to extend the order of bail as a result of which the said bail was expired long before on 23.12.2019. In that view of the matter, I have no hesitation to hold that the convict petitioner is a fugitive from law and justice.

In the case of Anti-Corruption Commission Vs. Dr. HBM Iqbal Alamgir, reported in 15BLC wherein, it has been held by the Appellate Division that Court would not act in

aid of an accused person who is a fugitive from law and justice.

In view of the above, this Rule must fail.

In the result, the Rule is discharged. The convict-petitioner, Rezwan Dai @ Razzak is directed to surrender his bail bond within 3 (three) months from today to suffer his sentence, failing which the Trial Court below shall take necessary steps to secure arrest against the convict petitioner.

Send down the lower Court records at once.